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August 3, 2026

Clerk of Court

United States District Court
Western District of New York – Rochester Division
100 State Street
Rochester, NY 14614
By fax: (585) 613-4035

Re: Moszkowski v. Rumsey et al., Case No. 6:26-cv-06015-EAW
U.S. District Court, Western District of New York

Dear Clerk of Court:

Plaintiff respectfully writes concerning the above-captioned action, which has now been pending for approximately seven months without a ruling on Plaintiff's Motion for Leave to Proceed *In Forma Pauperis*. Plaintiff wishes to bring the following practical matters to the attention of the Clerk in the interest of avoiding unnecessary delay or misunderstanding.

Plaintiff resides in a remote rural area of France where ordinary postal mail is no longer delivered to his residence. For several months, the local postal service has ceased delivering ordinary (non-registered) mail because of Plaintiff's isolated location and difficult access. This affects both domestic and international correspondence. As a result, ordinary mail arrives only when delivered together with rare and unrelated



registered mail, if it arrives at all. To compound these difficulties, Plaintiff has no access to a motor vehicle and is therefore not in a practical position to mail paper responses through a post office.

This has already had significant consequences. On several occasions, Plaintiff has received important notices only after the relevant deadlines or events had already passed. Most recently, notices relating to the seizure of Plaintiff's bank accounts were delivered only after the seizures had already been carried out, although those notices had been mailed more than thirty days earlier. Because Plaintiff did not receive the notices in time, he was unable to take timely action, and the French Treasury subsequently seized the remaining funds in his bank account without preserving the statutory protected minimum balance.

These circumstances directly affect Plaintiff's ability to prosecute this action and to comply promptly with the Court's communications and procedures.

First, because ordinary postal correspondence cannot be relied upon to reach Plaintiff within a reasonable time, Plaintiff respectfully requests, to the extent consistent with the Court's procedures, that any time-sensitive communications be transmitted by electronic means whenever practicable.

Second, Plaintiff respectfully submits that his pending Motion for Leave to Proceed *In Forma Pauperis* accurately reflects his present financial circumstances. Plaintiff's bank accounts and real property have been subjected to judicial seizures initiated by the Defendants or at their request, leaving Plaintiff without the financial ability to pay the filing fee. As a direct consequence of the resulting financial circumstances, themselves caused by those judicial seizures, Plaintiff was subsequently granted legal aid (*aide juridictionnelle*) by the French authorities for the related French proceedings involving the same opposing parties, following a determination of his financial eligibility. Although Plaintiff also maintains a U.S. bank account, its remaining balance is only a few dollars. Moreover, Plaintiff is unaware of any procedure permitting the filing fee to be paid remotely by credit card or other comparable means. Accordingly, absent a ruling on the



pending Motion for Leave to Proceed *In Forma Pauperis*, Plaintiff has no practical means of paying the filing fee or otherwise causing this action to proceed.

Plaintiff submits this information solely to facilitate the orderly administration of this case and appreciates the Clerk's consideration.

Respectfully,

Marc Moszkowski, Plaintiff, Pro Se

M. Moszkowski



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*****AUTO**All For SCF 144

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CLERK OF COURT
UNITED STATES DISTRICT COURT
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